

**BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**DECLARATION OF DAVID D. GOLDEN**

1. My name is David D. Golden. I am a Partner in the Washington, D.C. office of Constantine Cannon LLP. Constantine Cannon represents Complainant Intermodal Motor Carriers Conference of the American Trucking Associations as well as non-party motor carriers in the above-captioned proceeding.

2. I am a member in good standing of the Bar of the District of Columbia and have made an appearance before the Federal Maritime Commission in this proceeding.

3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.

4. I submit this Declaration in support of Complainant IMCC's Reply Brief in support of its Motion for Summary Decision and IMCC's Reply Statement of Material Undisputed Facts.

5. Attached hereto is a list of the 6 documents that comprises the Reply Appendix for IMCC's Reply Brief in support of its Motion for Summary Decision. The Reply Appendix Bates range for this document is CX00006312 to CX00006322.

6. Also attached hereto is the Reply Appendix, all of which are true and correct copies of the documents therein.

Respectfully submitted,

**DATED:** June 13, 2022

/s/ David D. Golden

David D. Golden

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| Description                                                               | Date       | CX Prodbeg | CX Prodend |
|---------------------------------------------------------------------------|------------|------------|------------|
| Deposition Transcript of Dave Manning [Excerpts]                          | 11/23/2021 | CX00006312 | CX00006312 |
| Deposition Transcript of Ken Tock [Excerpts]                              | 9/22/2021  | CX00006313 | CX00006315 |
| Deposition Transcript of Thomas Weisberg, Maersk A/S 143(b)(6) [Excerpts] | 11/19/2021 | CX00006316 | CX00006317 |
| Deposition Transcript of Vincenzo Roveccio, MSC 143(b)(6) [Excerpts]      | 12/3/2021  | CX00006318 | CX00006319 |
| Deposition Transcript of Douglass Coates (Respondents Expert) [Excerpts]  | 3/29/2022  | CX00006320 | CX00006321 |
| 2020 CPG billing data                                                     | 7/6/2021   | CX00006322 | CX00006322 |